

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KISHAUN SMITH

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. ROBERT
COX; NYPD SGT JONATHAN HOM; and NYPD P.O.
JOHN DOES #1-10; the individual
defendant(s) sued individually and in
their official capacities,

Defendants.

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YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
JANUARY 4, 2021



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiff
65 Broadway 1603
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD P.O. ROBERT COX
NYPD SGT JONATHAN HOM;
NYPD P.O. JOHN DOES #1-10
New York City Police Department
23rd Precinct
162 E 102nd St
New York, NY 10029

SUMMONS

Index No: _____

Date Filed: _____

Basis of Venue:

Occurrence of Incident:
New York, New York

Jury Trial Demanded

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

KISHAUN SMITH

VERIFIED COMPLAINT

Plaintiff,

Index No: _____

-against-

Basis of Venue:

THE CITY OF NEW YORK; NYPD P.O. ROBERT COX; NYPD SGT JONATHAN HOM; and NYPD P.O. JOHN DOES #1-10, the individual defendant(s) sued individually and in their official capacities,

New York, New York

Jury Trial Demanded

Defendants.

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The Plaintiff KISHAUN SMITH, by and through counsel Adams & Commissiong LLP, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of his rights secured by the laws of the State of New York; New York State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that occurred on August 5, 2017. During the incident, defendant, a police officer, employed by the city of New York, New York City Police Department negligently operated an unmarked police automobile and negligently and intentionally struck the plaintiff KISHAUN SMITH, while he was riding on a scooter. The

City of New York, and the individual defendant subjected Plaintiff to among other things, to personal injuries; negligence; gross negligence; intentional and negligent infliction of emotional distress; recklessness; carelessness and to a deprivation of his civil and common law rights; negligence in the hiring and retention of incompetent and unfit employees, negligence in the supervision, training and instruction of such employees, respondeat superior liability; and and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendant, compensatory damages from the municipal defendant, declaratory relief, and such other and further relief as the Court deems just and proper.

2. Within 90 days of the incident alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant

has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within 1 year and 90 days of plaintiff's 18th birthday.

5. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York and the individual defendant is subject to personal jurisdiction in Supreme Court of the State New York, New York County.

PARTIES

6. Plaintiff KISHAUN SMITH, at all times relevant to the Complaint, was a resident of Bronx County in the state of New York.

7. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York.

8. At all times alleged herein, defendants NYPD P.O. ROBERT COX; NYPD SGT JONATHAN HOM; and NYPD P.O. JOHN DOES #1-10, are NYPD police officers, employed by the City of New York, in the 23rd precinct, or another as yet unknown NYPD assignment, who committed the torts and acts against plaintiff described herein.

9. The individual defendants are sued in their individual and official capacity.

STATEMENT OF FACTS

10. On or about August 5, 2017, the defendants owned and operated an automobile, a Ford Fusion bearing license plate number NY GHN2291.

11. That at all times hereinafter mentioned, and more specifically, at the time and place of the happening of the occurrence hereinafter described, P.O. COX and JOHN DOES #1-10, operated the aforementioned automobile for and on behalf of the City of New York, and in the course of employment with the City.

12. On August 5, 2017, on Lexington Avenue, near the intersection of east 104th Street, defendant P.O. COX or John Does #1-10, negligently, careless and recklessly operated said automobile, in such a manner that he struck Plaintiff's scooter, knocking him from the scooter and causing him to sustain serious injuries.

13. Defendant P.O. Cox, drove the automobile, and passed plaintiff's scooter.

14. As the automobile was in front of plaintiff's scooter, Defendant P.O. Cox stopped the automobile.

15. As the automobile was stopped, defendant P.O. Cox opened the door of the automobile.

16. P.O. Cox opened the door in such a manner, that it struck plaintiff's scooter.

17. In order to cover up their misconduct, upon information, and belief defendants NYPD P.O. Cox and NYPD P.O. John/Jane Does #1-10 prepared false reports that, plaintiff drove the scooter into the police automobile.

18. That the injuries sustained by the plaintiff were caused solely by the negligence of the City, its agents, servants and/or employees in that, said automobile was not driven under proper care and control and that said operator of said automobile failed to exercise due and reasonable care in the operation of the automobile.

19. That as a result of the foregoing, the plaintiff has sustained a serious injury, as defined in Insurance Law 5104(d).

20. Defendants NYPD P.O. Cox and John Does #1-10 intentionally or negligently struck plaintiff with the door of the automobile.

21. The defendants acted under the pretense and color of the law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said

defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

22. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

23. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(ASSAULT UNDER STATE LAW)

24. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

25. Among other things as described above, defendants' search and seizure, battery, false arrest, and excessive use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

26. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SECOND CLAIM**(BATTERY UNDER STATE LAW)**

27. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

28. Among other things as described above, defendants' search and seizure, false arrest, and excessive use of force against plaintiff were illegal physical contacts.

29. Accordingly, defendants are liable to plaintiff under New York State law for battery.

THIRD CLAIM**(UNREASONABLE FORCE UNDER FEDERAL LAW)**

30. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

31. The individual defendants' use of force upon plaintiff was objectively unreasonable.

32. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

33. Those defendants who did not touch the plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

34. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant

to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM

(FAILURE TO INTERVENE)

35. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

36. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

37. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FIFTH CLAIM

(NEGLIGENCE AND GROSS NEGLIGENCE)

38. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

39. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

SIXTH CLAIM

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

40. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

41. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon plaintiff.

42. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

43. The defendants breached a duty owed to the plaintiff that either unreasonably endangered plaintiff's physical safety, or caused the plaintiff to fear for his own safety.

SEVENTH CLAIM

(NEGLIGENT SUPERVISION, HIRING, MONITORING TRAINING AND RETENTION OF UNFIT EMPLOYEES UNDER STATE LAW)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendant City of New York is liable to the plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of defendant City of New York, and the NYPD and its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said

defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its police officers.

EIGHTH CLAIM

(MONELL CLAIM)

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. Defendant City of New York, through a policy, practice, and custom, directly caused the constitutional violations suffered by plaintiff.

48. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs, and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

49. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

50. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

51. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice, and/or policy) would stop, arrest, and prosecute innocent individuals, based on pretexts and false evidence.

52. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

53. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects,

falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault, and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011, Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

54. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

55. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

56. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

NINTH CLAIM

(RESPONDEAT SUPERIOR)

57. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

58. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff, including assaulting, and battering plaintiff.

59. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands, damages in an amount which exceeds the jurisdiction of all lower Courts otherwise having jurisdiction, a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;

- b. Punitive damages in an amount to be determined by
a jury;
- c. Such other and further relief as this Court may
deem just and proper, including injunctive and
declaratory relief.

DATED: New York, New York
January 4, 2021

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By:



MARTIN E. ADAMS, ESQ.

KISHAUN SMITH

-against-

Index No:

Defendants

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